Texas Department of Information Resources

Transforming How Texas Government Serves Texans

AI Acceptable Use Policy

Version 1.0

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Introduction

DIR is committed to safely and responsibly integrating artificial intelligence (AI) systems into agency operations to promote efficiency and innovation. Increased use of AI involves certain

risks, which vary based on the AI systems and how they are being used. To mitigate those risks, DIR Users must take certain precautions and use AI systems in a safe and responsible manner. DIR has created this AI acceptable use policy to outline the requirements for DIR Users when using AI systems. By signing this policy, DIR Users acknowledge they have read and understand the AI Acceptable Use Policy and will comply with the requirements stated within the policy.

Reference Authority

Texas Business and Commerce Code Chapter 552, Subchapter B ("Duties and Prohibitions on the Use of Artificial Intelligence")
Texas Government Code Chapter 2054, Subchapter N-1 ("Cybersecurity and Artificial Intelligence")
Texas Government Code Chapter 2054, Subchapter S ("Artificial Intelligence")
Texas Administrative Code, Title 1, Chapter 219 ("Artificial Intelligence")
DIR Citizen Development Policy
DIR Privacy Policy
DIR Ethics Policy
DIR Data Management and Classification Policy
DIR Employee Handbook
NIST AI Risk Management Framework

Purpose

DIR's AI Acceptable Use Policy establishes a comprehensive framework for the responsible, ethical, and secure use of AI systems by DIR Users. This policy is intended to guide DIR Users as they incorporate AI systems into their work, while safeguarding DIR's data, ensuring accurate work product, and promoting the agency's goal of helping Texas government better serve Texans. This policy addresses challenges posed by AI, including the potential for AI output inaccuracies and hallucinations, privacy violations, and data leakage. It provides minimum requirements for DIR Users to ensure that the inputs and outputs of AI systems used within DIR align with agency standards and legal requirements.

Scope

This policy applies to all DIR Users, defined as individuals who access or use DIR systems and who use or access AI systems in the course of their official duties. This includes employees, contractors, interns, and agency volunteers.

This policy applies to the use of both DIR Integrated AI systems and Publicly Available AI systems.

- **DIR Integrated AI Systems** are tools that DIR has formally procured, configured, and integrated into its internal technology environment. DIR manages Integrated AI Systems

under its IT security protocols, data remains within DIR-approved infrastructure, and users log-in with agency credentials. Examples include Microsoft 365 Copilot and Copilot Chat as well as AI tools incorporated into a larger system formally adopted by DIR and operating within DIR's secure environment.

- **Publicly Available AI Systems** are commercial, web-based AI systems accessible over the internet that operate on shared infrastructure not controlled by DIR. Examples include web-accessed ChatGPT, Midjourney, and Google Gemini.

Goal

DIR Users will develop, deploy, and use AI systems in a safe and responsible manner to promote efficiency and productivity across the agency.

Methods

To safely and securely implement AI Systems, DIR Users will:

Review and Follow the AI System Code of Ethics

Section 2054.702 of the Texas Government Code requires state agencies to adopt the AI Systems Code of Ethics, found in Title 1, Section 219.11, Texas Administrative Code. The AI Systems Code of Ethics identifies key principles that governmental entities and their employees must consider in their procurement, development, deployment, and use of AI Systems. Those principles include:

- Human Oversight and Control
- Fairness
- Accuracy
- Redress
- Transparency
- Data Privacy and Security
- Accountability and Liability
- Evaluation and Documentation

Consistent with this section, DIR Users must review the AI Systems Code of Ethics and align any development, deployment, and use of AI systems with the principles found within the AI Systems Code of Ethics. By signing this Policy below, DIR Users certify that they have reviewed the AI Systems Code of Ethics.

Limit AI Usage to Approved Tools for DIR Purposes

DIR Users may only utilize approved AI systems in the performance of their official work duties. In accordance with the DIR Employee Handbook, DIR Users may use Publicly Available AI Systems for DIR-related purposes only if their supervisor or their supervisor's designee approves its use for a specified purpose in writing. Employees desiring to use AI systems not already embedded within an application or product utilized by DIR must complete the AI Access Request Form. The employee must submit their written request and receive approval to use a Publicly Available AI System prior to utilizing it.

AI usage is subject to all other DIR policies and professionalism standards. AI prompts and outputs are public records and may be subject to public disclosure upon request under the Public Information Act.

All interactions with AI systems may be logged, monitored, and reviewed by authorized DIR personnel for security, compliance, and auditing purposes. By using AI systems, DIR Users acknowledge and consent to such monitoring and are responsible for ensuring compliance with applicable laws, agency policies, and data classification requirements.

Verify Accuracy of AI-Generated Outputs

While AI is a powerful tool to create efficiencies and improve productivity, it is not infallible. AI systems are improving in their ability to deliver more accurate results, but inaccurate outputs remain a significant risk when using AI systems. AI tools create responses based on patterns in data and language models, which means outputs may contain inaccuracies, outdated information, or misinterpretations.

To ensure the accuracy of AI-generated content, DIR Users must:

- Treat AI outputs as a starting point, written by an unskilled intern. Human judgment and expertise remain essential to ensuring a quality final work product.
- Review and verify all outputs for correctness and completeness. Fact-check any citations to ensure reference materials are correctly attributed and up to date.
- If output results are not as expected, review the data quality of the input sources.
- Cross-check critical details against authoritative sources.
- Consider the tone and relevance of the output and whether it reflects the message intended.
- Seek review of subject matter experts if outputs pertain to specialized knowledge beyond your expertise.

DIR Users are responsible for the content they publish, submit, or take action upon, regardless of whether the content was created with the assistance of AI.

Protect Sensitive and Personal Identifying Information

DIR has a critical responsibility to protect the PII it collects and processes about individuals and any sensitive or confidential data held or accessed by the agency. Both legal and ethical restrictions exist on what PII DIR shares with third parties, including with third-party AI platforms. Sharing PII with a Publicly Available AI System could result in a data breach and result in legal liability for DIR. To limit the risk of unauthorized disclosure of PII or other sensitive data, DIR Users should limit AI usage to DIR Integrated Systems, including Microsoft Copilot, whenever possible.

Publicly Available AI Systems that DIR has not integrated into its secure environment may transmit data across the public internet, store user inputs and outputs indefinitely, and use inputs to train the underlying AI model. DIR Users adoption of these tools creates added risk and must be treated with caution. When using Publicly Available AI Systems, DIR Users must:

- Not share or input any confidential, sensitive, or PII data into the AI tools.
- Report any data breaches or incidents involving AI systems to their supervisor and the DIR Privacy Officer immediately.

Be Transparent About AI Usage

DIR is committed to ensuring that the public, stakeholders, and internal users understand when, how, and why AI is used. Transparency is critical to ensuring trust and implementing appropriate levels of review on AI-created content.

Disclose AI Systems that Interact with the Public

Statutorily-mandated disclosure requirements exist for any AI systems DIR deploys that interact with the public. DIR Users must notify the Office of General Counsel before making any AI system available to interact with the public and ensure the appropriate disclosures exist alongside the AI system before public deployment.

Give Attribution When Work Product Relies Significantly on AI-Generated Content

DIR Users must notify their supervisor when they create content with the assistance of AI tools. DIR Users must give attribution to an AI System in instances where the AI System significantly shapes ideas, arguments, or substantive content of a document or other work product. DIR Users should consult with their managers and the Office of General Counsel to determine whether and to what extent attribution to an AI System is appropriate in a given context.

Using an AI System for non-substantive writing assistance, such as grammar or spelling correction, light editing, or minimal structuring of a document, does not require attribution.

Document AI Integration into Standard Workflows

If a DIR User incorporates an AI System into the integral performance of a job task, the DIR User must document the process for using the AI System to complete the job task and confer with the DIR User's supervisor to ensure that appropriate staff are cross-trained on how to use the tool to complete the task. If a DIR User develops an AI agent or automated process to help accomplish a job task, the DIR User must review the Citizen Development Policy and ensure compliance.

Identify Uses of Heightened Scrutiny AI Systems

Subchapter S, Chapter 2054 of the Texas Government Code places requirements on governmental entities when they develop, deploy, or use heightened scrutiny AI systems, including conducting written risk assessments and documentation prior to any deployment of the AI system.

A heightened scrutiny AI system is any AI system specifically intended to autonomously make, or be a controlling factor in making, a consequential decision. The term does not include AI systems intended to: (a) perform a narrow procedural task; (b) improve the result of a previously completed human activity; (c) perform a preparatory task to an assessment relevant to a consequential decision; or (d) detect decision-making patterns or deviations from previous decision-making patterns. A consequential decision is one that has a material legal or similarly significant effect on the provision, denial, or conditions or a person's access to a government service.

Whether a given AI tool qualifies as a heightened scrutiny AI system will depend on both the capabilities of the tool and how DIR Users will utilize it. DIR Users considering deployment or use of a heightened scrutiny AI system must notify the Chief AI and Innovation Officer and may not procure, develop, deploy, or use a heightened scrutiny AI system without their approval.

DIR Users should direct any questions about whether a system qualifies as a heightened scrutiny AI system to the Office of General Counsel.

Avoid Prohibited Uses of AI Systems

DIR Users must not attempt to manipulate AI systems by prompt injection techniques or bypassing or disabling AI system safeguards, filters or restrictions through any other means.

In accordance with state and federal law, the following AI uses are prohibited:

1. Using AI to generate or disseminate misleading or deceptive content.
2. Using AI for social scoring that could result in unfavorable treatment or infringement of an individual's legal rights.

3. Developing or deploying an AI system for the purpose of uniquely identifying a specific individual using biometric data.
4. Using AI with the intent of infringing, restricting, or otherwise impairing an individual's rights guaranteed under the U.S. Constitution.
5. Using AI with the intent to unlawfully discriminate against a protected class in violation of state or federal law.

Complete AI Training and Awareness

Section 2054.5191 of the Government Code requires state employees to complete an annual artificial intelligence training program certified by DIR. DIR will provide the annual training and may provide additional periodic training and briefing related to the deployment of specific AI Systems or other obligations that DIR Users have related to AI Systems usage. DIR Users must complete the training within the time specified by DIR.

Certification

I have been given the opportunity to review this policy prior to signing. If I have questions about the policy, I will contact my direct supervisor and DIR's Office of General Counsel. By my signature below, I certify that I have reviewed the Texas AI Code of Ethics and that I will comply with the requirements of this policy.

Employee Name (print)	Employee Signature	Date Signed

Compliance and Enforcement

Misuse of AI systems and failure to comply with this policy can result in disciplinary action up to and including termination.

Glossary

Acronyms

Artificial Intelligence (AI)

Personal Identifying Information (PII)

Texas Administrative Code (TAC)

Definitions

Artificial Intelligence System: A machine-based system that for explicit or implicit objectives infers from provided information a method to generate outputs, such as predictions, content, recommendations, or decisions, to influence a physical or virtual environment with varying levels of autonomy and adaptiveness after deployment.

Consequential Decision: A decision that has a material legal or similarly significant effect on the provision, denial, or conditions or a person's access to a government service.

Controlling Factor: A factor that is (a) the principal basis for making a consequential decision; or (b) capable of altering the outcome of a consequential decision.

DIR Integrated AI Systems: AI-enabled systems that DIR has formally procured, configured, and integrated into its internal technology environment. DIR manages Integrated AI Systems under its IT security protocols, data remains within DIR-approved infrastructure, and users log-in with agency credentials. Examples include Microsoft 365 Copilot and Copilot Chat as well as AI tools incorporated into a larger system formally adopted by DIR and operating within DIR's secure environment.

DIR Users: All individuals using or accessing DIR systems who use AI systems in the course of their official duties. This includes employees, contractors, interns, and agency volunteers.

Heightened Scrutiny Artificial Intelligence System: An AI system specifically intended to autonomously make, or be a controlling factor in making, a consequential decision. The term does not include AI systems intended to: (a) perform a narrow procedural task; (b) improve the result of a previously completed human activity; (c) perform a preparatory task to an assessment relevant to a consequential decision; or (d) detect decision-making patterns or deviations from previous decision-making patterns.

Personal Identifying Information: Information that alone or in conjunction with other information identifies an individual.

Publicly Available AI Systems: Commercial, web-based AI systems that are accessible over the internet and operate on shared infrastructure not controlled by DIR. Publicly Available AI Systems operating outside of DIR's secure environment and pose greater risks for data handling and privacy.

Records Retention Statement

This document follows the State of Texas Records Retention Schedule for the Department of Information Resources. This document falls under Agency Item #AD.114, Internal Policies and Procedures. It has a retention period of 4 years and a retention code of US (Until Superseded).

Review Period

Completion Date: March 13, 2026

Effective Date: March 16, 2026

Target Review Date: April 1, 2027 – Due to the quickly evolving nature of AI systems and governance needs, it is recommended this this policy be reviewed annually.